

Mutual Non-Disclosure Agreement

Between: ReachNG, of Lagos, Nigeria, and [CLIENT LEGAL NAME], of [CLIENT ADDRESS] (each a "Party", together the "Parties"). **Effective Date:** [DATE].

1. Purpose

The Parties wish to disclose certain confidential information to each other in connection with the Master Service Agreement (the "Purpose"). This NDA governs that disclosure.

2. Confidential Information

"**Confidential Information**" means any non-public information disclosed by one Party (the "Discloser") to the other (the "Recipient"), whether orally, in writing, or by access to systems, that:

- is marked or identified as confidential at the time of disclosure, OR
- a reasonable person would understand to be confidential given its nature and the context of disclosure.

By way of illustration, Confidential Information includes:

- The Client's lead lists, contact details, and BusinessBrief content.
- The Client's pricing, sales pipeline, and commercial strategy.
- ReachNG's source code, AI prompts, BusinessBrief framework, and product roadmap.
- ReachNG's pricing, contract terms, and sub-processor stack details.
- Any analytics, reports, or aggregated data produced under the MSA.

3. Exclusions

Confidential Information does **not** include information that:

- is or becomes publicly available without breach of this NDA,
- the Recipient already lawfully held without restriction before disclosure,
- the Recipient lawfully receives from a third party without restriction, or
- the Recipient independently develops without use of or reference to the Discloser's Confidential Information.

4. Obligations

Each Party shall:

- Use the other's Confidential Information **only for the Purpose**.
- Hold it in confidence and apply at least the same standard of care it applies to its own information of similar sensitivity, and in any event no less than a reasonable standard.
- Disclose it only to those of its officers, employees, contractors, and professional advisors who **need to know** for the Purpose and who are bound by equivalent confidentiality obligations.
- Not reverse engineer, decompile, or disassemble any software, prompt, or system disclosed.

- **Not use Confidential Information to train or fine-tune any AI / ML model**, except as expressly permitted under the MSA.

5. Required disclosure

If the Recipient is required by law, court order, or regulator to disclose Confidential Information, it shall (where lawful) give the Discloser prompt written notice and reasonable cooperation to permit the Discloser to seek a protective order.

6. Term

This NDA continues in force for the duration of the MSA and for **3 years** after termination. The obligation to protect trade secrets continues for as long as they qualify as such under Nigerian law.

[LAWYER REVIEW] — confirm 3-year tail is market for Lagos SaaS contracts.

7. Return / destruction

On termination of the MSA or on the Discloser's written request, the Recipient shall, at the Discloser's option, return or destroy all copies of Confidential Information in its possession, save for:

- one archival copy retained for legal-record purposes, and
- backups that are not readily accessible and will be overwritten or destroyed in the ordinary course.

8. No licence

Nothing in this NDA grants either Party any licence to the other's intellectual property, save the limited use right necessary for the Purpose.

9. Remedies

The Parties acknowledge that breach of this NDA may cause irreparable harm not adequately compensated by damages, and that **injunctive relief** may be sought in addition to any other remedy.

10. Governing law and disputes

Governed by the laws of the **Federal Republic of Nigeria**. Disputes follow the resolution path set out in MSA §13.

Signature block

ReachNG

Signed: _____ Name: [REACHNG SIGNATORY] Title: [TITLE] Date:

Client

Signed: _____ Name: [CLIENT SIGNATORY] Title: [TITLE] Date:
